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1919, Rowlatt Act

This wider political background of the unfolding decade of the 1920s is often not entirely grasped. As Durba Ghosh makes clear, ‘The year 1919 marked the formal end of the First World War and provided an opportunity to the British government in India to defuse radical and militant Indian nationalists who had challenged colonial rule through acts of political violence.’[1] But the fact is this opportunity was squandered. The British government passed the Government of India Act 1919 immediately after the war ‘to privilege Indian elites who were politically moderate by creating a road map to allow Indians the ability to eventually govern themselves, but with British supervision’, and this ran in tandem with ‘the continuation of repressive legislation through the recommendations of the Rowlatt Commission’,[2] which in turn led to the so-called ‘Rowlatt Act’. This was the chillingly worded Anarchical and Revolutionary Crimes Act, designed to curb the impact of radicals and militants by restricting, in respect of political crimes, the right to trial by jury and the abeyance, for seditious offences, of habeas corpus. The combined effect of these provisions was to ensure the incarceration and eventual trial by a judge alone of an accused.

The impetus to this lay in the habits developed during the First World War, which proved difficult to relinquish. Just four days after the Great War broke out, on 8 August 1914, the British government passed the Defence of the Realm Act 1914[3] (DORA). It allowed the government to acquire wide-ranging emergency powers, from being able to requisition buildings for the war effort to creating new criminal offences by passing regulations. DORA paved the way for the most draconian censorship, as the government embarked on a concerted programme of authoritarian social control. This is